

2:00 PM

LINE: 5

25-CIV-06878

FRANK KAUL VS. AFONSO INFANTE, ET AL

FRANK KAUL
AFONSO INFANTE

PRO SE
PRO SE

DEFENDANT ANH TRUONG'S RENEWED MOTION FOR SANCTION

TENTATIVE RULING:

For the reasons stated below, Defendant Anh Truong's Renewed Motion for Sanctions is DENIED. The challenged allegations present pleading and factual disputes appropriately addressed by demurrer, not sanctions. Defendant has not shown subjective bad faith under Code of Civil Procedure 128.5 or an objectively frivolous filing under section 128.7. Discovery-related complaints are not sanctionable under those statutes, and the requested monetary, issue, evidentiary, and terminating sanctions are unsupported and disproportionate. The motion is **DENIED**.

Any party who contests a tentative ruling must email Dept2@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests. The Court reminds parties argument will not be heard on the set hearing date. Parties will be notified of the date set for any argument if the motion is contested.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare a proposed order repeating this tentative ruling verbatim, pursuant to California Rules of Court, rule 3.1312, and San Mateo County Superior Court Local Rule 3.403(b)(iv), and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE: 6

25-CIV-09320

BART D. KIMBER VS. JOE TORRES, ET AL

BART D. KIMBER
JOE TORRES

PRO SE
WILLIAM B. LUTON

DEFENDANTS ALL RISK SHIELD, INC. and JOE TORRES' MOTION TO TRANSFER AND/OR CHANGE VENUE

TENTATIVE RULING:

For the reasons stated below, the motion to change venue to San Luis Obispo County is **GRANTED** pursuant to CCP §396b. Defendants have offered evidence to show that San Mateo County is neither their residence nor principal place of business. When a plaintiff brings an action against several defendants, both individual and corporate, in a county which is neither the residence nor principal place of business of any defendant, an individual defendant has a right to a change of venue to the county of his residence even though venue as initially laid may otherwise be justifiable upon one of the grounds in §395.5. *Carruth v. Superior Court* (1978) 80 Cal.App.3d 215, 220-221.

Any party who contests a tentative ruling must email Dept2@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests. The Court reminds parties argument will not be heard on the set hearing date. Parties will be notified of the date set for any argument if the motion is contested.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.